

25VECV03851 25VECV03851

County: los-angeles

Division: Civil Law and Motion

Department: NWI

Hearing date: 2026-07-09

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=NW%20%2CNWI%2C07%2F09%2F2026

Source SHA-256: 7a6f249a0a14c4568979865b006b29e832c26e0284dc95bbf04daa71cfb2ca34

Case Number: 25VECV03851 Hearing Date: July 9, 2026 Dept: NWI

25VECV03851 ANIKA MCFALL vs DELUXE TRANSPORTATION
& LIVERY, LLC, et al.

July 9, 2026, at 8:30 a.m.

Van Nuys Courthouse East, Dept. I

Tentative Ruling – Motion to Compel

Initial Responses

I.

Background

On July

10, 2025, Plaintiff Anika McFall ("Plaintiff") filed a complaint against Deluxe Transportation & Livery, LLC ("Defendant") and Does 1 to 10 alleging motor vehicle negligence.

On

November 3, 2025, Plaintiff filed her first amended complaint ("FAC") alleging three causes of action: (1) negligence; (2) negligent entrustment; and (3) violation of vehicle codes.

On May

18, 2026, Defendant filed the instant motion to compel Plaintiff's responses to Form Interrogatories, Set One.

To date,

the motion remains unopposed.

II. Motion

to Compel Initial Responses

Interrogatories

If a party to whom interrogatories are directed fails to serve a timely response, the propounding party may move for an order compelling responses and for a monetary sanction. (Cal. Code of Civ. Proc. § 2030.290(b).) The statute does not contain a time limit for a motion to compel where no responses have been served. All that need be shown in the moving papers is that a set of interrogatories was properly served on the opposing party, that the time to respond has expired, and that no response of any kind has been served. (See *Leach v. Superior Court* (1980) 111 Cal.App.3d 902, 905-906.)

Where there has been no timely response to interrogatories, the demanding party may seek an order compelling a response. (CCP § 2031.300(b).) Failure to timely respond waives all objections, including privilege and work product. (CCP § 2031.300(a).) Thus, unless the party to whom the demand was directed obtains relief from waiver, he or she cannot raise objections to the interrogatories. Likewise, for failure to respond, the moving party need not attempt to resolve the matter outside court before filing the motion.

Discussion

Defendant served their discovery request on Plaintiff on November 17, 2025. (Cotter Decl. ¶ 5; Exh. A [discovery request].) Defendant provided Plaintiff with various extensions to respond until May 8, 2026. (Id. at ¶¶ 6-11; Exh. B [email correspondence].) Ultimately, upon filing this motion, Plaintiff had not served her responses. (Id. at ¶ 11.) Accordingly, Defendant's motion is granted.

Defendant requests sanctions in the total amount of \$1,335.00, representing a \$60.00 filing fee and five hours of attorney work at an hourly rate of \$255.00. (Cotter Decl. at ¶ 12.) Considering the motion remains unopposed, the Court reduces this amount to \$825.00 (representing a \$60.00 filing fee and three hours of attorney work at an hourly rate of

\$255.00).

III.

Conclusion

Defendant's motion is granted. Plaintiff is to serve Defendant with substantive, code-compliant, objection-free responses to Defendant's Form Interrogatories, Set One, within fifteen days of this order.

Additionally, Plaintiff and her counsel, jointly and severally, are to pay defense counsel sanctions in the amount of \$825.00 within fifteen days of this hearing.

Moving party to give notice.